Nations. In 1924, the League Assembly and the Council set up a Committee of Experts to codify certain international laws. A Codification Conference met at the Hague to consider the subjects related to nationality, territoriality and responsibility of states for damage caused within their territory to the person and properties of foreigners. The United Nations created the International Law Commission in 1927 which prepared a Declaration on Rights and Duties of States, and formulated some principles underlying the Nuremberg War Crimes Tribunal (1946) and others. The Human Rights Commission drafted the Universal Declaration of Human Rights (1948) and the International Covenant on Civil and Political Rights (1966), the International Covenant on Economic Social and Cultural Rights (1966), and the Convention on Genocide (1948).

International law is generally acknowledged as a body of rules accepted by civilized nations, which define their rights and obligations and the procedures enforcing them.

Definitions of International Law

According to Oppenheim[2] international law is “the name for the body of customary and conventional rules which are considered legally binding by civilized states in their intercourse of states with each other”. And it is “a law between, and not above, the single states”.

Stowell[3] defined international law as embodying “certain rules relating to human relations throughout the world, which are generally observed by mankind and enforced primarily through the agency of the governments of the independent communities into which humanity is divided”.

According to Jessup[4], in the study of international law, “The recent trend in the West, particularly in the United States, is toward a less technical view of the law. The increasingly influential School of International Law created by Myres S. McDougal of Yale University regards law as a process of decision into which all relevant factors, and not merely technical norms, enter. It virtually identifies law with policy and calls the study of law a policy science”.

Fenwick[5] regards international law as primarily “the body of rules